

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
WALE HARDING,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER STACIE
PENA, and POLICE OFFICERS "JOHN/JANE DOES"
being currently unidentified members of the NEW YORK
CITY POLICE DEPARTMENT,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates BRONX
County as the place of trial.

The basis of venue is:
Place of Occurrence.

This occurrence took place:
i/f/o 1140 Burke Avenue
Bronx, New York

County of Bronx

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 15, 2024



BRETT M. STAMBOLIAN
BRANDEL & STAMBO LAW, PLLC
Attorneys for Plaintiff(s)
WALE HARDING
274 Madison Avenue, Suite 402
New York, New York 10016
(646) 522-8052

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER STACIE PENA
c/o 49th Precinct NYPD
2121 Eastchester Road
Bronx, NY 10461

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.:

WALE HARDING,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER STACIE
PENA, and POLICE OFFICERS "JOHN/JANE DOES"
being currently unidentified members of the NEW YORK
CITY POLICE DEPARTMENT,

Defendants.

-----X

Plaintiff, by his attorneys, **BRANDEL & STAMBO LAW, PLLC**, complaining of the
Defendants, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION (FALSE ARREST)

1. That at the time of the commencement of this action, Plaintiff **WALE HARDING** resided in the County of Bronx, City and State of New York.
2. That the cause of action alleged herein arose in the County of Bronx, City and State of New York.
3. That at all of the times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That at all the times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, maintained, managed, controlled and operated a Police Department within its

boundaries and jurisdiction.

5. That at all the times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction, and which said Police Department employed the defendants, **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE DOES"** being **currently unidentified members of the NEW YORK CITY POLICE DEPARTMENT**.
6. That at all of the said times and places hereinafter mentioned, the defendants, **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE DOES"** being **currently unidentified members of the NEW YORK CITY POLICE DEPARTMENT**, were in the employ of the NEW YORK CITY POLICE DEPARTMENT.
7. That at all of the said times and places hereinafter mentioned, the defendants, **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE DOES"** being **currently unidentified members of the NEW YORK CITY POLICE DEPARTMENT**, were acting within the scope of their employment with and under the color of authority of the NEW YORK CITY POLICE DEPARTMENT.
8. That heretofore and on or around November 7, 2023, the plaintiff was lawfully in front of the premises located at 1140 Burke Avenue, in the County of Bronx, City and State of New York.
9. That at the aforesaid time and place, the plaintiff was caused to be detained by officers of the New York City Police Department, including, but not limited to Defendants **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE DOES"** being

currently unidentified members of the NEW YORK CITY POLICE DEPARTMENT.

10. That at the aforesaid time and place, the plaintiff was falsely, unjustly and without cause, arrested by said officers, including, but not limited to, **POLICE OFFICER STACIE PENA and POLICE OFFICERS “JOHN/JANE DOES” being currently unidentified members of the NEW YORK CITY POLICE DEPARTMENT.**
11. That, upon information and belief, the aforesaid unlawful arrest and detention, continued thereafter at the 49th Precinct located at 2121 Eastchester Road in the County of Bronx, City and State of New York.
12. That, upon information and belief, the plaintiff was then placed under custodial arrest and held in a cell at the Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York.
13. That at all the said times, the aforesaid police officers, including, but not limited to, defendants **POLICE OFFICER STACIE PENA and POLICE OFFICERS “JOHN/JANE DOES” being currently unidentified members of the NEW YORK CITY POLICE DEPARTMENT**, who detained, and who falsely, unjustly and without cause, arrested this plaintiff were agents, servants and/or employees of the defendant, **THE CITY OF NEW YORK.**
14. That at all the said times, the aforesaid police officers, including, but not limited to defendants, **POLICE OFFICER STACIE PENA and POLICE OFFICERS “JOHN/JANE DOES” being currently unidentified members of the NEW YORK CITY POLICE DEPARTMENT**, who detained, and who falsely, unjustly and without cause, arrested this plaintiff, were on duty and acting within the course and scope of their

employment.

15. That at all the said times, the afore described detainment and false arrest of this plaintiff by officers of the New York City Police Department, including, but not limited to, defendants, **POLICE OFFICER STACIE PENA and POLICE OFFICERS “JOHN/JANE DOES” being currently unidentified members of the NEW YORK CITY POLICE DEPARTMENT**, was without just cause, probable cause or provocation.
16. That as a result of the foregoing, the defendants, its agents, servants and/or employees violated plaintiff's civil rights.
17. That as a result of the foregoing, the defendants, its agents, servants and/or employees violated plaintiff's New York State Constitutional rights.
18. That as a result of the foregoing, the defendants, their agents, servants and/or employees violated plaintiff's federal rights under the Constitution of the United States of America.
19. That as a result of the foregoing, the defendants, its agents, servants and/or employees violated 42 U.S.C. § 1983, among other statutes.
20. That the foregoing occurrence was caused wholly, solely or in part by reasons of the carelessness and negligence of the defendants, **THE CITY OF NEW YORK, POLICE OFFICER STACIE PENA, and POLICE OFFICERS “JOHN/JANE DOES” being currently unidentified members of the NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees in and about the operation, maintenance, management and control its Police Department and members thereof; in giving and making false declarations; in that these defendants, their agents, servants and/or employees failed to properly train, supervise and control the actions and activities

of the police officers who wrongfully detained, and who falsely, unjustly and without cause, arrested the plaintiff; in that these defendants, their agents, servants and/or employees allowed, suffered, caused and permitted said officers to be, exist and remain as police officers of the New York City Police Department despite due knowledge and notice of their propensities to act without cause; in that these defendants, their agents, servants and/or employees negligently trained, hired and retained said police officers to act on its behalf; in that said police officers wrongfully detained, and falsely, unjustly and without cause, arrested the plaintiff during the course and scope of their employment as police officers for the New York City Police Department acting under color of law; in that these defendants, their agents, servants and/or employees were otherwise careless and negligent in utter disregard of the rights, safety and well-being of this plaintiff and other persons similarly situated.

21. That upon information and belief, no charges were filed against the Plaintiff **WALE HARDING** in relation to the subject incident.
22. That as a result of the foregoing, plaintiff sustained damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and this court does have jurisdiction of this matter.
23. That this plaintiff did not contribute to the happening of this occurrence nor to the injuries sustained by him by any act or omission on his part.
24. That solely by virtue of the foregoing, this plaintiff was subjected to great indignities, embarrassment, mental anguish, and was held up to scorn, shame, ridicule and embarrassment and was tormented, abused and humiliated in person and character; he was psychologically and physically injured, and wounded; he sustained a severe shock to his

nervous system and suffered intense pain and mental anguish; he was confined in and about his bed and home for a considerable period of time and was incapacitated from attending to his usual vocation; he was obliged to expend diverse sums of money and/or incur obligation for medical attention, care, treatment and supplies in an endeavor to cure or lessen the effects of his afore described injuries; the plaintiff was in other respects injured, all to the extent of a sum of damages which exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION (NEGLIGENCE)

25. Plaintiff repeats and re-alleges each and every allegation previously made with the same force and effect as if hereinafter set forth at length herein.
26. That at all times herein mentioned, Defendants **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE DOES"** being currently unidentified members of the **NEW YORK CITY POLICE DEPARTMENT** were acting under the color of state law, under their authority as Police Officers and in their capacity as employees of Defendant **THE CITY OF NEW YORK**.
27. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** hired, trained, retained, supervised, monitored and directed officers – including Defendants **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE DOES"** being currently unidentified members of the **NEW YORK CITY POLICE DEPARTMENT**.
28. That at all times herein mentioned, it was the duty of Defendant **THE CITY OF NEW YORK** to hire, train, retain, supervise, monitor and direct officers – including Defendants **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE**

DOES” being currently unidentified members of the NEW YORK CITY POLICE DEPARTMENT.

29. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** and its agents, servants, officers and employees, owned the complex known as 49th Precinct located at 2121 Eastchester Road in the County of Bronx, City and State of New York, and the complex known as the Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York.
30. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** and its agents, servants, officers and employees, operated the complex known as 49th Precinct located at 2121 Eastchester Road in the County of Bronx, City and State of New York, and the complex known as the Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York.
31. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** and its agents, servants, officers and employees, maintained the complex known as the 49th Precinct located at 2121 Eastchester Road in the County of Bronx, City and State of New York, and the complex known as Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York.
32. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** and its agents, servants, officers and employees, controlled the complex known as the 49th Precinct located at 2121 Eastchester Road in the County of Bronx, City and State of New York, and the complex known as Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York.
33. That at all times herein mentioned, the care, custody, control and safety of Plaintiff and

other inmates within the complex known as the 49th Precinct located at 2121 Eastchester Road in the County of Bronx, City and State of New York, and the complex known as Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York were the duty and responsibility of Defendants.

34. That at all times herein mentioned, Defendants were on notice and had, or reasonably should have had knowledge that Plaintiff's life, safety and well-being were in danger, but failed to take reasonable measures to protect same.
35. That at all times herein mentioned, Defendants caused and created the dangerous condition(s) that Plaintiff was placed in.
36. That on November 7, 2023, Plaintiff **WALE HARDING** was housed within the complex known as the 49th Precinct located at 2121 Eastchester Road in the County of Bronx, City and State of New York, and the complex known as Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York.
37. That, upon information and belief, prior to being assaulted, Plaintiff **WALE HARDING** made complaints about other inmates and expressed concern for his life and safety to Defendants and other officers, all agents, servants and/or employees of Defendant **THE CITY OF NEW YORK**.
38. That on November 7, 2023, Defendants **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE DOES"** being currently unidentified members of the **NEW YORK CITY POLICE DEPARTMENT**, along with other agents, servants and/or employees of Defendant **THE CITY OF NEW YORK** through its **DOC**, were assigned to the complex known as the 49th Precinct located at 2121 Eastchester Road in the County of Bronx, City and State of New York, and the complex

known as Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York to monitor and protect the inmates therein, including Plaintiff **WALE HARDING**.

39. That on November 7, 2023, within the complex known as the Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York, Plaintiff was assaulted by another inmate, without his consent, whose identity is currently unknown to Plaintiff, armed with weapons and objects not permitted under the policies, directives and guidelines of Defendant **THE CITY OF NEW YORK**.
40. That on the aforesaid date and at the aforesaid place, Plaintiff was attacked, physically assaulted, verbally harassed, and mentally assailed against his will and without his consent, by an other inmates due in part to, including but not limited to, defendants', its agents', servants', employees', contractors' and/or licensees' negligence, careless, gross negligence, recklessness, wanton disregard, and dereliction of duty and failure to be present and monitoring the aforesaid housing unit.
41. That following the aforementioned assault, Defendants failed to provide Plaintiff with the adequate medical attention he required.
42. That Defendants were negligent and careless in failing to adequately supervise, monitor and inspect inmates within their custody and care.
43. That Defendants were negligent and careless in failing to follow the rules, regulations, guidelines and policies of Defendant **THE CITY OF NEW YORK**.
44. That, prior to November 7, 2023, Defendants had notice that inmates within the complex known as the Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York possessed weapons, in violation of the

rules, regulations, guidelines, procedures and policies of Defendant **THE CITY OF NEW YORK**.

45. That Defendants were negligent and affirmatively negligent, committing various negligent acts and omissions, in contravention of good and accepted practices, procedures, and protocols, including with respect to the use of force, stop, detention, search, supervision, control and monitoring of the complex known as the Bronx County Criminal Court, located at 215 East 161st Street, in the County of Bronx, City and State of New York and the inmates therein; in failing to properly search, safeguard, restrain and control the inmates within their custody, care and protection, including Plaintiff; in breaching a special duty owed to Plaintiff causing Plaintiff to suffer severe personal injuries, conscious pain and suffering, loss of enjoyment of life, economic harm, emotional upset, shock and fright, and fear of impending injury or death.
46. That Defendants violated Plaintiff's State and Federal Constitutional rights, 42 USC§1983, causing him to sustain physical injury, humiliation and embarrassment.
47. That Defendants were negligent in failing to adequately supervise inmates under its/their supervision; in failing to provide for the safety and well-being of inmates; in allowing inmates to have and/or bring harmful instruments – including but not limited to canes – into Housing Units; despite knowing the propensity for violence and injury to occur; in failing to monitor inmates and their activities to prevent them from physically harming one another; in having actual knowledge of inmates possessing harmful instruments and failing to protect other inmates; in allowing this attack to occur despite knowledge of same; in failing to monitor post(s) to prevent such attacks from happening; in having actual knowledge of this attack taking place and failing to stop/contain same; in allowing

this attack to go on for such a period of time that Defendants reasonably should have known of its happening and stopped it; in failing to provide plaintiff with the medical attention plaintiff required; and Defendants were otherwise negligent, careless and reckless in the disregard of its/their duty to provide for the safety of inmates.

48. That in failing to follow the rules, regulations, guidelines, policies, procedure and/or protocol of Defendant **THE CITY OF NEW YORK**, Defendants caused and created the dangerous condition responsible for Plaintiff's injuries.
49. That Defendant **THE CITY OF NEW YORK** were negligent in failing to properly hire, train and supervise Defendants **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE DOES"** being currently unidentified members of the **NEW YORK CITY POLICE DEPARTMENT**, along with other agents, servants and/or employees of Defendant **THE CITY OF NEW YORK**, acting within the scope of their employment and color of law.
50. That Defendants violated Plaintiff's state and federal civil rights.
51. That Defendants violated Plaintiff's state and federal constitutional rights.
52. That Defendants failed to intervene to protect the safety of Plaintiff from known danger.
53. As a result of the foregoing, plaintiff sustained damages in the amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and this Court does have jurisdiction of this matter.
54. That at all relevant times herein, the Defendant **THE CITY OF NEW YORK**, were negligent in their hiring, training, supervision, discipline, monitoring, retention, and promotion of its officers, including and especially Defendants **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE DOES"** being currently

unidentified members of the NEW YORK CITY POLICE DEPARTMENT

described in the aforementioned paragraphs, including all those officers and employees who failed to intervene to protect the Plaintiff against the wrongful acts committed against him.

55. That at all relevant times herein, the Defendant **THE CITY OF NEW YORK**, knew or should have known of the discriminatory nature, bad judgement, and unlawful propensities of the officers involved in the violation of Plaintiff **WALE HARDING**'s civil rights, and the various wrongful, illegal, intentional, and negligent acts described in the aforementioned paragraphs.
56. That at all relevant times herein, the Defendant **THE CITY OF NEW YORK**, were negligent in their treatment of Plaintiff **WALE HARDING** and in their failure to protect plaintiff from the violations of his civil rights, and their agents, servants, employees and officers including and especially Defendants **POLICE OFFICER STACIE PENA and POLICE OFFICERS "JOHN/JANE DOES"** being currently unidentified members of the **NEW YORK CITY POLICE DEPARTMENT** described in the aforementioned paragraphs, were negligent, reckless, and intentional in their wrongful treatment of Plaintiff **WALE HARDING** and their failure to protect plaintiff from the violations of his civil rights.
57. That this occurrence was caused wholly and solely by the negligence of Defendants, without any negligence on the part of Plaintiff contributing thereto.
58. That at all relevant times herein, Plaintiff **WALE HARDING**, while in police custody and control, was seriously injured.
59. That solely as a result of the negligence, recklessness, and intentional acts of defendants as

aforesaid, without any negligence on the part of the Plaintiff **WALE HARDING** contributing to the occurrences and damages alleged herein in any manner whatsoever, Plaintiff suffered great humiliation, degradation, emotional injuries, mental anguish, nervous shock, loss of freedom, deprivation of his state and federal constitutional rights, physical pain and injuries, pain and suffering and loss of enjoyment of life, economic harm, and has been damaged in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

60. That the limitations of CPLR Article 16 do not apply to this case and one or more of the exceptions to said Article do apply to this case.

**AS AND FOR A THIRD CAUSE OF ACTION (NEGLIGENT HIRING, TRAINING,
AND SUPERVISION)**

61. Plaintiff repeats and re-alleges each and every allegation previously made with the same force and effect as if hereinafter set forth at length herein.
62. That Defendants were negligent with respect to their hiring, training, supervision, retention, monitoring, and promotion of police officers; failed to have and/or properly implement an early warning screening system for psychological profiles; and failed to detect and/or respond in an appropriate and timely manner to signs and symptoms of unfitness of the individual officers herein causing Plaintiff to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, economic harm, emotional upset, shock and fright, and fear of impending injury or death.
63. As a result of the foregoing, Plaintiff sustained damages in the amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and this court does have jurisdiction of this matter.

**AS AND FOR A FOURTH CAUSE OF ACTION (INTENTIONAL INFLICTION OF
EMOTIONAL HARM)**

64. Plaintiff repeats and re-alleges each and every allegation previously made with the same force and effect as if hereinafter set forth at length herein.
65. That Defendants did intentionally and recklessly conduct themselves toward plaintiff in a manner so extreme, shocking, and outrageous that it exceeded all reasonable bounds of decency causing Plaintiff to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, economic harm, emotional upset, shock and fright, and fear of impending injury or death.
66. As a result of the foregoing, Plaintiff sustained damages in the amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and this court does have jurisdiction of this matter.

**AS AND FOR A FIFTH CAUSE OF ACTION (CIVIL RIGHTS VIOLATIONS AND
MONELL CLAIM)**

67. Plaintiff repeats and re-alleges each and every allegation previously made with the same force and effect as if hereinafter set forth at length herein.
68. That Defendants, acting under color of State Law, through their intentional and affirmatively negligent acts and omissions, violated plaintiff's constitutional and civil rights, as guaranteed by the Charter and Code of the City of New York, the Constitution of the State of New York and New York State statutes/rules/regulations/policies/codes, and the Constitution of the United States of America, including 42 USC 1981 – (2000) et seq., 42 USC 1983, the 4th, 8th and 14th Amendments, and the New York State Civil Rights Law; and through their inadequate training, supervision, hiring, screening,

monitoring, retention, discipline, and promotion of their correctional officers, evinced a policy, practice, and custom of deliberate indifference to the individual, civil, and constitutional rights of individuals, so as to ratify such conduct, and violated plaintiff's constitutional and civil rights, as guaranteed by the Charter and Code of the City of New York, the Constitution of the State of New York and New York State statutes/rules/regulations/policies/codes, and the Constitution of the United States of America, including 42 USC 1981 – (2000) et seq., 42 USC 1983, the 4th, 8th and 14th Amendments, and the New York State Civil Rights Law; evinced a pattern, custom, or policy of ratifying improper and unconstitutional conduct and deliberate indifference with respect to racial profiling and discriminatory practices which resulted in a deprivation of the plaintiff's rights; in evincing a pattern of deliberate indifference, and which the municipal Defendant knew or should have known would have resulted in such occurrences as described herein; in negligently condoning and ratifying improper conduct and a pattern of improper conduct and a pattern of deliberate indifference to Plaintiff's civil rights; in engaging in discriminatory acts based on Plaintiff's race and ethnicity all causing Plaintiff to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, economic harm, emotional upset, shock and fright, and fear of impending injury or death.

69. That Defendants had notice of Plaintiff's civil and constitutional rights were being violated.
70. That Defendants violated their duty to intervene and to protect the constitutional rights of citizens, and specifically of Plaintiff, from infringement by others in their presence.
71. As a result of the foregoing, plaintiff sustained damages in the amount which exceeds the

jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and this court does have jurisdiction of this matter.

72. That on January 17, 2024, the plaintiff presented, served and filed a notice of claim with intention to sue thereon upon the Comptroller of the City of New York.
73. That the Comptroller of the City of New York requested that the plaintiff attend an oral hearing, which was held virtually on March 27, 2024.
74. That more than 30 days have elapsed and expired since the presentation of the notice of claim and intention to sue, and the Comptroller of the City of New York has failed and neglected to pay or adjust the said claim or any part thereof.
75. That the plaintiff has presented, served and filed his Notice of Claim and Intention to Sue thereon, as aforesaid, within 90 days after the date of the occurrence herein.
76. That this action was commenced within one year and 90 days since the happening of this accident and occurrence.
77. That the plaintiff has, prior to the commencement of this action, complied with all of the provisions of law in such cases made and provided.
78. That this action falls within one or more of the exceptions set forth in CPLR §1602.

WHEREFORE, the plaintiff demands judgment against the defendants in a sum of damages in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

Dated: New York, New York
May 15, 2024

A handwritten signature in black ink, appearing to read 'Brett M. Stambolian', is written over a horizontal line.

BRETT M. STAMBOLIAN
BRANDEL & STAMBO LAW, PLLC
Attorneys for Plaintiff(s)
WALE HARDING
274 Madison Avenue, Suite 402
New York, New York 10016
(646) 522-8052

ATTORNEY'S VERIFICATION

BRETT M. STAMBOLIAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **BRANDEL & STAMBO LAW, PLLC**, attorneys of record for Plaintiff **WALE HARDING**. I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) is/are not presently in the county wherein the attorneys for the plaintiff(s) maintain their offices.

DATED: New York, New York
May 15, 2024

A handwritten signature in dark ink, appearing to read 'Brett M. Stambolian', is written over a horizontal line.

BRETT M. STAMBOLIAN

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X

WALE HARDING,

Index No.:

Plaintiff,

-against-

**THE CITY OF NEW YORK, POLICE OFFICER STACIE PENA,
and POLICE OFFICERS "JOHN/JANE DOES" being currently
unidentified members of the NEW YORK CITY POLICE
DEPARTMENT,**

Defendants.

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SUMMONS AND VERIFIED COMPLAINT

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BRANDEL & STAMBO LAW, PLLC
274 Madison Avenue, Suite 402
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